INDIAN LAW & DEALMAKING · 16 OCTOBER 2026

Five moves shaping the board now.

- Invesco India fund enters insolvency over 145 crore default
- SEBI slaps 12.5 crore fine on Brightcom promoters
- Supreme Court blocks interest awards barred by contract
- Reliance Retail closes 950 crore purchase of Clovia
- ED attaches 310 crore assets in Aamby Valley probe

SWIPE →

INSOLVENCY · NCLT MUMBAI

NCLT admits Invesco India fund into corporate insolvency

On October 15, 2026, the NCLT Mumbai Bench admitted Invesco India Private Equity Fund into the Corporate Insolvency Resolution Process over a debt default exceeding 145 crore rupees. The tribunal appointed an Interim Resolution Professional to take immediate operational control from management.

THE READ

Private equity funds operating as corporate entities are directly exposed to operational creditor enforcement when capital calls or debt obligations fail. Lenders and creditors can now push financial sponsors into statutory resolution to seize fund assets.

SECURITIES · SEBI

SEBI penalises Brightcom promoters 12.5 crore for disclosures

On October 15, 2026, SEBI issued a final administrative order imposing a trading ban and a cumulative penalty of 12.5 crore rupees on the promoters of Brightcom Group. The regulator penalised the management for structural disclosure violations and misleading financial statements.

THE READ

SEBI continues its crackdown on governance lapses in mid-cap tech firms by stripping promoters of market access. The strict penalty demonstrates that reporting misstatements will invite executive disqualification alongside steep personal monetary penalties.

ARBITRATION · SUPREME COURT

Supreme Court bars interest awards contrary to contracts

On October 16, 2026, the Supreme Court ruled in Jaiprakash Associates Ltd. vs. Uttar Pradesh Power Corporation Ltd. that tribunals cannot award pre-award interest if contract terms expressly exclude it. The judgment interpreted Section 31(7)(a) of the Arbitration Act in relation to an 85 crore rupee disputed interest claim.

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Party autonomy overrides arbitral discretion on pre-award interest under Indian law. Commercial parties must draft explicit interest-exclusion clauses to effectively insulate themselves against substantial liability in long-drawn arbitration proceedings.

M&A · CORPORATE

Reliance Retail secures 51 percent stake in Clovia

On October 15, 2026, Reliance Retail Ventures Ltd. completed the acquisition of a 51 percent controlling stake in Clovia parent Purple Panda Fashions Pvt. Ltd. for 950 crore rupees. The transaction implemented clearance conditions previously mandated by the Competition Commission of India.

THE READ

Reliance continues to consolidate its direct-to-consumer digital portfolio through strategic majority control in lifestyle brands. Antitrust clearances for conglomerate retail investments are moving smoothly toward swift execution once formal remedies are satisfied.

ENFORCEMENT · PMLA

ED attaches 310 crore Aamby Valley land assets

On October 15, 2026, the Enforcement Directorate executed provisional attachment orders seizing 310 crore rupees in immovable property linked to Aamby Valley Ltd. management. The PMLA Adjudicating Authority issued the order in connection with an ongoing multi-state land diversion probe.

THE READ

PMLA enforcement against real estate promoter groups remains intense, with provisional attachments targeting core physical assets directly. Corporate boards with real estate holdings face elevated asset-freeze risks when money laundering probes touch underlying land titles.

THE THROUGH-LINE

Across insolvency, securities enforcement, commercial arbitration, consumer dealmaking, and anti-money laundering actions, regulatory and judicial authorities are holding corporate management strictly accountable to formal legal boundaries. Whether by enforcing contract terms to cap arbitral interest, stripping trading rights for financial misstatements, or freezing assets in land probes, Indian forums are driving stricter compliance standards. Dealmakers and boards must adjust their risk models to reflect uncompromising enforcement across all regulatory touchpoints.

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